

24AVCV00857 24AVCV00857

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Case Number: 24AVCV00857 Hearing Date: July 21, 2026 Dept: A14

SUPERIOR COURT OF THE STATE OF CALIFORNIA

COUNTY OF LOS ANGELES – NORTH DISTRICT

GUILLERMO VALENZUELA, an individual, and SANDRA VALENZUELA, an individual,

Plaintiffs,

v.

GENERAL MOTORS, LLC, a limited liability company; DIAMOND BUICK GMC CADILLAC PALMDALE, a business entity, form unknown; and DOES 1 through 50, inclusive

Defendants.

Case Number 24AVCV00857

[TENTATIVE]

STATEMENT OF DECISION

Date of Hearing: July 21, 2026

Dept. A-14

Judge William H. Forman

I. Background

This is a Song-Beverly action arising from Plaintiffs Guillermo Valenzuela and Sandra Valenzuela's purchase of a new vehicle from Defendant Diamond Buick GMC Cadillac Palmdale, an authorize dealer and agent of General Motors, LLC, and General Motors, LLC's alleged violation of its statutory obligations under the Song-Beverly Consumer Warranty Act. Plaintiffs presently move the Court for an order of attorney's fees, costs, and expenses pursuant to the parties' settlement agreement.

On July 15, 2024, Plaintiffs Guillermo Valenzuela and Sandra Valenzuela (Plaintiffs) filed their complaint against General Motors, LLC (GM) and Diamond Buick GMC Cadillac Palmdale (Diamond) (together Defendants). The complaint asserts three causes of action for (1) Violation of Song-Beverly Consumer Warranty Act (Song-Beverly Act) – Breach of Express Warranty, (2) Violation of Song-Beverly Act – Breach of Implied Warranty, and (3) Violation of Song-Beverly Act – Section 1793.2.

Specifically, Plaintiffs allege that on July 9, 2023, they purchased a new 2023 GMC Yukon XL (Vehicle) from Diamond for \$132,452.68. (Compl., ¶¶ 6, 8.) Plaintiffs state that the Vehicle was delivered along with express written and implied warranties, but after delivery, several defects and nonconformity to warranty presented in the Vehicle and Defendants were unable or unwilling to remedy these nonconformities. (Compl., ¶¶ 9-15.)

On September 9, 2024, GM filed its answer.

On September 18, 2024, Diamond filed its answer.

On April 23, 2025, Plaintiffs filed a notice of settlement of the entire case, and the Court set an OSC re dismissal (settlement) for hearing on December 8, 2025.

On October 15, 2025, Plaintiffs filed two Memorandums of Costs.

On December 1, 2025, Plaintiffs filed a request for dismissal.

On December 3, 2025, the entire action was dismissed without prejudice and with the court retaining jurisdiction pursuant to California Code of Civil Procedure section 664.6.

On April 1, 2026, Plaintiffs filed the present motion for attorney's fees.

On July 8, 2026, GM filed its opposition.

On July 14, 2026, Plaintiffs filed their reply.

II. Evidentiary Objections

Plaintiffs' Evidentiary Objections – Plaintiff submits four objections to the Declaration of Natalie Keshishian. The Court rules as follows:

Objections Nos. 1-4 are OVERRULED.

III. Legal Standard

Standard for Motion for Attorney's Fees, Costs, and Expenses – Under Civil Code section 1794, subdivision (d), the prevailing buyer under the Song-Beverly Consumer Warranty Act is entitled to fees that were reasonably incurred: “If the buyer prevails under this section, the buyer shall be allowed by the Court to recover as part of the judgment a sum equal to the aggregate amount of costs and expenses, including attorney’s fees based on actual time expended, determined by the court to have been reasonably incurred by the buyer in connection with the commencement and prosecution of such action.” (Civ. Code, § 1794, subd. (d).) The trial court has an obligation to award only those attorneys’ fees that are reasonable. (See *PLCM Group v. Drexler* (2000) 22 Cal.4th 1084, 1095-96; see also *Ketchum v. Moses* (2001) 24 Cal.4th 1122, 1132.) A prevailing party includes the party with a net monetary recovery in settlement of the case. (Code Civ. Proc., § 1032, subd. (a)(4).)

The lodestar method is the primary method for determining a reasonable attorney fee award under section 1794, subdivision (d). (*Robertson v. Fleetwood Travel Trailers of California, Inc.* (2006) 144 Cal.App.4th 785, 818-19.) “A trial court assessing attorney fees begins with a touchstone or lodestar figure, based on the careful compilation of the time spent and reasonable hourly compensation of each attorney involved in the presentation of the case.” (*Christian Research Institute v. Alnor* (2008) 165 Cal.App.4th 1315, 1321 [internal quotations omitted].) “The reasonableness of attorney fees is within the discretion of the trial court, to be determined from a consideration of such factors as the nature of the litigation, the complexity of the issues, the experience and expertise of counsel and the amount of time involved. [Citation.] The court may also consider whether the amount requested is based upon unnecessary or duplicative work.” (*Wilkerson v. Sullivan* (2002) 99 Cal.App.4th 443, 448 [citations omitted].) “The basis for the trial court’s calculation must be the actual hours counsel has devoted to the case, less those that result from inefficient or duplicative use of time.” (*Horsford v. Board of Trustees Of California State University* (2005) 132 Cal.App.4th 359, 395.) “The law is clear, however, that an award of attorney fees may be based on counsel’s declarations, without production of detailed time records.” (*Raining Data Corp. v. Barrenechea* (2009) 175 Cal.App.4th 1363, 1375.)

In setting the hourly rate for an attorney fees award, courts are entitled to consider the rate of “fees customarily charged by that attorney and others in the community for similar work.” (*Bihun v. AT&T Information Systems, Inc.* (1993) 13 Cal. App. 4th 976, 997 [affirming rate of \$450 per hour], overruled on other grounds by *Lakin v. Watkins Associated Indus* 1993) 6 Cal. 4th 644, 664; see also *Heritage Pacific Financial, LLC v. Monroy* (2013) 215 Cal.App.4th 972, 1009 [“[R]ate determinations in other cases, particularly those setting a rate for the plaintiffs’ attorney, are satisfactory evidence of the prevailing market rate.”].)

IV. Discussion

Application – Plaintiff requests an order for attorney’s fees, costs, and expenses amounting to \$41,243.96 pursuant to a signed California Code of Civil Procedure section 998 Offer of Compromise (998 Offer), the Song-Beverly Consumer Warranty Act, California Civil Code section 1794, subdivision (d), and calculated using the lodestar formula. (Motion, p. 1:25-27; Notice of Motion, p. 1:4-7.) This total is comprised of (1) \$25,915.00 for attorney’s fees, (2) \$12,957.50 for an enhancement of attorney’s fees by a multiplier of 1.5, and (3) \$2,371.46 for costs and expenses. (Motion, p. 10:9-16.)

a. Entitlement to Attorney’s Fees, Costs, and Expenses

Here, there is no dispute that Plaintiffs are the prevailing party to this litigation, nor that they were entitled to recover reasonable attorney's fees, costs, and expenses incurred in litigation. The 998 Offer establishes that Plaintiffs accepted the offer, which states, in relevant part, "GM will pay, Plaintiff's attorney fees, expenses and costs that have been reasonably incurred pursuant to California Civil Code § 1794(d) may be determined by the Court via noticed motion. For the purposes of any such motion, Defendants will agree that Plaintiffs are the prevailing party." (Wirtz Decl., Ex. 7, ¶ 2.) The 998 Offer is signed by Richard M. Wirtz, attorney for Plaintiffs, and dated April 23, 2025. (Wirtz Decl., Ex. 7, p. 3:13-19; Motion, p. 1:14.)

In any event, it is undisputed that this 998 Offer was accepted by Plaintiff, and it is undisputed that Plaintiff elected for his attorney's fees, costs, and expenses to be determined by the Court on noticed motion pursuant to Section 1794, subdivision (d). (Opp., p. 3:5-6.) Where an accepted 998 Offer designates the Plaintiffs as the prevailing party and specifically delegated determination of fees to the Court, it thereby entitles the Plaintiffs to bring the subject motion. (*Engle v. Copenbarger & Copenbarger, LLP* (2007) 157 Cal.App.4th 165, 168-69.)

b. Timeliness of Plaintiffs' Motion

Before the Court considers the motion on the merits, the Court must address the timeliness of the present motion. A motion for attorneys' fees must be served and filed within the time for the filing of a notice of appeal in a civil case. (Cal. Rules of Court, rule 3.1702(b)(1).) The time for the filing of a notice of appeal in an unlimited action is 60 days if a "Notice of Entry" of Judgment was served by the court clerk or a party to the action, or within 180 days of entry of judgment or dismissal. (*Id.*, rule 8.104.)

The attorney fee motion deadline is triggered by the "conclusion of the litigation" which is marked by entry of judgment or dismissal in the trial court. (*Catlin Ins. Co., Inc. v. Danko Meredith Law Firm, Inc.* (2022) 73 Cal.App.5th 764, 781; see also Cal. Rules of Court, rules 3.1702(b)(1), 8.104(a)(1)(A)-(C).) The clock starts to run from "either the service of notice of entry of judgment or dismissal (starting a 60-day clock), or if no such notice is given, the entry of judgment or dismissal (starting a 180-day clock)." (*Catlin Ins. Co.*, supra, 73 Cal.App.5th at 781.) Accordingly, when an order of dismissal is entered and no notice of dismissal is served, a fee motion, like an appeal, must be filed within 180 days after the date of dismissal. (See *Sanabria v. Embrey* (2024) 92 Cal.App.4th 422, 426-429.)

GM argues that the case should have been dismissed no later than June 7, 2025, which was 45 days after the Notice of Settlement was filed, and that therefore this motion should have been brought within 180 days of June 7, 2025. (Opp., p. 4:5-8.) GM cites in support *Hatlevig v. General Motors LLC* (2026) 118 Cal.App.5th 644, in which the Appellate Court held that a signed dismissal order is not required to start the 180-day clock for determining the timeliness of a fee motion, and that a Court-ordered or automatic dismissal constitutes a judgment which triggers the clock when a plaintiff fails to file a dismissal of an action after settlement. (Opp., p. 3:23-4:3; *Hatlevig*, supra, 118 Cal.App.5th at 650.) The *Hatlevig* Court further held that when a plaintiff fails to file a request for dismissal of the entire case within 45 days of settlement, the Court must dismiss the case 45 days after it receives notice of settlement unless good cause is shown why the case should not be dismissed. (*Hatlevig*, supra, 118 Cal.App.5th at 649.)

The Court is not persuaded that the motion is untimely under Rule of Court 3.1702(b)(1).

No notice of dismissal was filed or served which would trigger the running of the 60-day deadline for filing the present motion. Rather, the running of the 180-day deadline was triggered by dismissal of the case, which was entered on December 3, 2025. Thus, Plaintiffs had 180 days from December 3, 2025 to file the present motion, making it due on or before Monday, June 1, 2026. The Plaintiffs motion is therefore timely.

Furthermore, this motion is not untimely under *Hatlevig*. The *Hatlevig* Court notes that while dismissal of an action generally follows a settlement as a matter of law, due process requires notice to the parties before a court may dismiss a case 45 days after receiving notice of settlement, a requirement which was satisfied in *Hatlevig*, but which was not satisfied here. (*Hatlevig*, supra, 118 Cal.App.5th at 649-50.) In *Hatlevig*, upon the Court's receipt of notice of settlement of the action, the clerk mailed the parties notice that the case would be deemed dismissed with prejudice on August 15, 2023 unless a dismissal was filed or a party showed good cause why the case should not be dismissed, which satisfied due process requirements for

court-ordered dismissal. (Id at 649.) Here, the notice was quite different. It stated that the Court would hold an OSC re dismissal on December 8, 2025. (See Order to Show Cause Hearing Re: Dismissal (Settlement) and attached Certificate of Mailing dated April 23, 2025.) The Notice stated, "If there are no appearances, no dismissal filed, nor good cause shown why this action should not be dismissed, the Court on its own motion may dismiss this action pursuant to California Rules of Court, rule 3.1385." It would be perverse for this Court to now hold, as GM urges, that the action was in effect dismissed on June 7, 2025, when the Court gave the parties notice that the Court would consider dismissing the case on December 8, 2025. And, as provided for in the Notice, the parties did in fact dismiss the matter in advance of the OSC, and that dismissal was entered on December 3, 2025.

In addition to the motion being timely under rule 3.1702(b)(1), the parties here expressly agreed that "[t]his Court will retain jurisdiction to enforce this offer of compromise under Code of Civil Procedure § 664.6." (Wirtz Decl., Ex. 7, ¶ 8.) The accepted 998 Offer also included that "GM will pay, Plaintiff's attorney fees, expenses and costs that have been reasonably incurred pursuant to California Civil Code § 1794(d) may be determined by the Court via noticed motion. For the purposes of any such motion, Defendants will agree that Plaintiffs are the prevailing party." (Wirtz Decl., Ex. 7, ¶ 2.)

These promises by GM, agreed to by Plaintiff, were without qualification as to when a motion for attorney's fees should be filed. The Court finds that the parties' unqualified agreement that Plaintiff was entitled to fees, could bring a fees motion, would be deemed the prevailing party for the purposes of the fee motion, and that the Court would retain jurisdiction to enforce these promises, are binding promises to be enforced. If GM wanted to condition that promise based on Plaintiff bringing the motion for fees within a certain time period it could have, but it did not.

c. Reasonableness of Attorney's Fees Amount

As discussed, the standard method for calculating reasonable attorney's fees is the lodestar method, which determines recoverable fees by multiplying the reasonable hourly rate of the attorneys by the reasonable number of hours billed for the work performed.

i. Reasonableness of Attorneys' Hourly Rates

Plaintiffs were represented by two law firms in this case: (1) Norman Taylor & Associates (NTA) and (2) Wirtz Law (WL). (Motion, p. 2:2-3.) The case was initiated by NTA, and NTA ceased all billing upon WL's association with the exception of one entry for client communication. (Motion, p. 2:3-4; Taylor Decl., Ex. 1.)

Plaintiffs argue that their counsel's rates are reasonable, relying on *Graciano v. Robinson Ford Sales, Inc.* (2006) 144 Cal.App.4th 140, which Plaintiffs state sets forth factors to consider in determining the reasonableness of attorneys' hourly billing rates. (Motion, p. 5:22-26.) Plaintiffs are mistaken as to the standard for finding attorney's fees reasonable. The correct standard for a determination of reasonableness of hourly fees is "the basic fee for comparable legal services in the community." (*Graciano*, supra, 144 Cal.App.4th at 154.) The factors set forth by Plaintiffs are analyzed when a party requests an adjustment of these hourly rates, such as Plaintiffs' present request for a fee multiplier. (*Ibid.*) Accordingly, the reasonableness of Plaintiffs' counsels' hourly rates will be determined by comparing rates accepted within the community for similar legal services and without analyzing the factors set forth by Plaintiff, which are analyzed in detail below in the Court's analysis of Plaintiffs' request for a 1.5 fee multiplier.

The Declaration of Richard M. Wirtz sets forth the autobiographies and hourly rates of five WL timekeepers who worked on the present case. Their roles, hourly rates, and identifying billing codes are as follows:

1. Amy R. Rotman (ARR), senior trial attorney, admitted to California State Bar in 2012, \$600/hr.
2. Jessica R. Underwood (JRU), senior trial attorney, admitted to California State Bar in 2015, \$600/hr.

3. Rebecca Evans (REE), senior managing paralegal, not licensed to practice, \$300/hr.
4. Kaitlyn Dols (KD), paralegal, not licensed to practice, \$250/hr.
5. Iris A. Diaz (ID), associate attorney, admitted to California State Bar in 2024, \$450/hr.

(Wirtz Decl., ¶¶ 17-21.)

The Declaration of Norman F. Taylor sets forth the autobiographies, declarations, and hourly rates of three NTA timekeepers who worked on the present case. Their roles and hourly rates are as follows:

1. Norman F. Taylor (NFT), attorney and principal of NTA Law Firm, admitted to the California State Bar in 1987, \$645/hr.
2. Nick McNaughton (NMC), paralegal, not licensed to practice, \$250/hr.
3. Lusine Musat (LM), paralegal, not licensed to practice, \$250/hr.

(Taylor Decl., ¶¶ 1, 6, 12-13, 26.)

GM does not argue that any of these rates are unreasonable or should be reduced. As the issue of rate reasonableness is uncontested, the Court accepts the rates for the purposes of this motion. This ruling should not be construed by any other court that this Court has found, after a disputed adjudication, that Plaintiffs' counsel's rates are reasonable.

Accordingly, the rates requested for the billing attorneys and paralegals are accepted as requested.

ii. Reasonableness of Hours Billed

Plaintiffs' counsel argues they reasonably spent 66.8 hours in prosecuting this action between two law firms from inception through settlement including the actually-incurred fees in bringing the present fee motion. (Motion, p. 2:14, 3:8; Wirtz Reply Decl., Ex. 9.) Plaintiffs argue that their submission of verified fee bill is sufficient to shift the burden to GM to prove with evidence that the requested fees are unreasonable or unnecessary beyond broad objections to or disagreement with Plaintiffs' asserted fees. (Motion, p. 4:7-9.)

In opposition, GM argues that Plaintiffs' request should be denied or significantly reduced by 32.8 hours, totaling \$16,781.00 for expenses not actually, reasonably, or necessarily incurred. (Opp., p. 9:17-18.)

GM specifically objects to the following charges from NTA and requests the specified reduction:

1. Pre-representation work – 6.9 hours (\$3,502.50) billed from May 13, 2024 through July 12, 2024 prior to Plaintiffs' retention of NTA – Court should strike all 6.9 hours (\$3,502.50) (Opp., p. 5:14-27);
2. Drafting and reviewing templated complaint – 1.5 hour (\$967.50) billed on July 15-16, 2024 – should be reduced by 1.0 hour (\$645.00) (Opp., p. 6:1-10);

3. Templated discovery requests to GM and Diamond – 8.7 hours (\$5,611.50) billed on December 5-6, 2024 – should be reduced by 7.7 hours (\$4,966.50) (Opp., p. 6:11-17);
4. Notice of association – 0.4 hours (\$645.00) billed on January 17, 2025 – should be reduced by 0.3 hours (\$322.50) (Opp., p. 6:18-22.);
5. Clerical tasks billed at an attorney rate – 1.1 hours (\$709.50) billed on November 20, 2024 and January 21, 2025 – should be stricken entirely (Opp., p. 6:23-7:2);
6. Clerical tasks billed by paralegals – 2.9 hours (\$725.00) billed on July 16, 2024, October 3, 2024, October 30, 2024, and December 6, 2024 – should be stricken entirely (Opp., p. 7:3-8).

GM specifically objects to the following charges from WL and requests the specified reduction:

1. Proprietary work product – 1.1 hours (\$360.00) billed on January 29, 2025 and February 21, 2025 – should be stricken entirely (Opp., p. 7:11-14);
2. Excessive client communications – 4.8 hours (\$2,880.00) billed throughout the case – should be reduced by 2.4 hours (\$1,440.00) (Opp., p. 7:15-25);
3. Template meet and confer letter – 2.0 hours billed on February 22, 2025 – should be reduced by 1.5 hours (\$675.00) (Opp., p. 7:26-8:5);
4. Clerical time billed by paralegals – 3.6 hours (\$945.00) billed throughout the case – should be stricken entirely (Opp., p. 8:6-13);
5. Clerical tasks billed at attorney rate – 1.4 hours (\$630.00) billed throughout the case – should be stricken entirely (Opp., p. 8:14-18);
6. Hours auditing counsel's fees and billing – 0.2 hours (\$120.00) billed on March 27, 2026 – should be stricken entirely (Opp., p. 8:19-23.);
7. Templated fee motion – 6.8 hours (\$3,900.00) billed on March 30-31, 2026 and anticipated – should be reduced by 3.8 hours (\$2,100.00) (Opp., p. 8:24-9:6.)

On reply, Plaintiffs generally argue that GM's objections and requests for reductions should be denied as most are insufficient, evidence-less 'excessive' objections. (See Reply, pp. 5-7.)

The prevailing party has the burden of showing that the requested attorney fees were "reasonably necessary to the conduct of the litigation, and were reasonable in amount." (Robertson, *supra*, 144 Cal.App.4th at 817.) The party seeking attorney fees "is not necessarily entitled to compensation for the value of attorney services according to [his] own notion or to the full extent claimed by [him]." (Levy v. Toyota Motor Sales, USA, Inc. (1992) 4 Cal.App.4th 807, 816.) Therefore, if the "time expended or the monetary charge being made for the time expended are not reasonable under all the circumstances, then the court must take this into account and award attorney fees in a lesser amount." (Nightingale v. Hyundai Motor America (1994) 31 Cal.App.4th 99, 104.)

The detailed billing records Plaintiffs have submitted to validate the billed hours for which Plaintiffs request reimbursement "are entitled to credence in the absence of a clear indication the records are erroneous." (Horsford, supra, 132 Cal.App.4th at p. 396.) On presentation of a detailed fee bill, accompanied by a sworn affidavit as to the accuracy of the fee bill, the bill is presumed credible, and the court must use these records as a starting point for its lodestar determination. (Id at 396-97.)

Here, the Court finds most of Plaintiffs' counsel's billing reasonable. From May 13, 2024 through January 21, 2025, NTA billed a total of 26.3 hours of work, including case review with Plaintiffs, correspondence with a third party mechanical consultant, gathering evidence for discovery, mediation, and trial, formulating and drafting case plans and direction for Plaintiffs, reviewing the representation agreement, drafting various filings including the CMC statement, notice of posting jury fees, correspondence with GM's counsel, drafting Plaintiffs' discovery requests (including two sets of form interrogatories, 49 special interrogatories, 59 requests for production, and 82 requests for admission between two separate entities), and correspondence with Plaintiffs, their clients.

While reliance on templated drafts is common and can significantly reduce an attorney's work, counsel is still expected to review these templates and modify them accordingly, considering the specific legal issues raised, the facts of the case, and conducting further research where necessary. For example, GM objects to 8.7 hours billed by counsel, for reviewing the file and documents and drafting and preparing Plaintiffs' discovery requests, and seeks to reduce this amount by 7.7 hours. The Court's review of these invoices (Taylor Dec., Ex. 1) finds that some reduction is warranted, but not 7.7 hours. Given the duplicative nature of the discovery, the Court reduces the amount billed in half (from 8.7 hours to 4.3 hours, a 4.4 hour reduction).

Additionally, the Court agrees that 0.4 hours for the drafting of the Notice of Association of Counsel is excessive. The Court reduces this amount by 0.3 hours, to 0.1 hour.

GM objects to work done for reviewing the conformed complaint and checking the assigned judge. Having reviewed the conformed Complaint, the Court finds that the fees billed should be reduced by 0.5 hours, to 1 hour. The Court does not find it appropriate to reduce or strike billing entries for client communication, particularly where there is a purported language barrier and given the high value of the vehicle. Attorneys have a legal and ethical obligation to promptly provide their clients with updates and advise them on the progress of their case, and the Court finds entries related to client communication reasonable, necessary, and appropriate. In the absence of evidence to the contrary, the Court finds most of NTA's billing entries reasonable and necessary.

The Court agrees in part with GM's characterization of some of these charges as secretarial or clerical in nature, and notes that some of these entries do not constitute substantive legal work. While calendaring dates, properly recording and saving client files and Court documents, and coordinating appearances by counsel are important and necessary tasks in litigation, these tasks are secretarial in nature and do not warrant attorney, or even paralegal, billing. As the United States Supreme Court has held: "Of course, purely clerical or secretarial tasks should not be billed at a paralegal rate, regardless of who performs them. What the court in *Johnson v. Georgia Highway Express, Inc.*, 488 F. 2d 714, 717 (1974), said in regard to the work of attorneys is applicable by analogy to paralegals: 'It is appropriate to distinguish between legal work, in the strict sense, and investigation, clerical work, compilation of facts and statistics and other work which can often be accomplished by non-lawyers but which a lawyer may do because he has no other help available. Such non-legal work may command a lesser rate. Its dollar value is not enhanced just because a lawyer does it.'" (*Missouri v. Jenkins* (1989) 491 U.S. 274, 288 n.10.) Thus, while the Court finds the time spent on this task to be reasonable absent evidence to the contrary, billing these tasks as attorney or paralegal fees is unwarranted. While many of these tasks are marked as "No Charge" on NTA's billing records, a few of the entries are labeled as "Billable." (Taylor Decl., Ex. 1.)

Therefore, the Court strikes or reduces the following billing entries for being secretarial by nature:

1. October 30, 2024 – reduced by 0.1 hours (\$64.5) billed by NFT for "Check the Trial Calendar."

2. October 30, 2024 – the Court strikes 0.6 hours (\$150.00) billed by LM for “Set up Special Appearance by Lawrence Adamsky for upcoming CMC hearing due to calendar conflict; emailed CMC docs for review; rec’d conf. email re appearance w/ atty’s contact info and amount to be charged.”

3. November 13, 2024 – reduced by 0.1 hour (\$64.5) billed by NFT for “Save same in client’s file.”

4. November 20, 2024 – the Court strikes 0.5 hours (\$322.50) billed by NFT for “Rec’d CMC ruling; saved in file; calendared PMSC, FSC and Trial dates w/ all associated deadlines.”

5. December 6, 2024 – reduced by 0.5 (\$125) billed by LM for “scan and e-serve Plaintiff’s Propounded Discovery to both Defendants; save in file; calendar the deadlines for Defendants’ responses in Abacus.”

From January 14, 2025 through July 21, 2026, WL billed for a total of 40.5 hours, including for work for proprietary document preparation, client communication, preparation of meet and confer correspondence, preparation of deposition notices for GM’s and Diamond’s persons most knowledgeable and other witnesses, compiling responsive documents and preparing written responses to GM’s discovery requests, review of GM’s offers of settlement, telephone conferences with GM’s counsel, drafting a motion to compel written discovery, and drafting the present motion. (Wirtz Reply Decl., Ex. 9.)

The Court again finds that some of the billing entries are clerical in nature, and thus warrant a reduction or shall be stricken altogether. Therefore, the Court strikes or reduces the following billing entries:

1. February 5, 2025 – the Court strikes 0.2 hours (\$50.00) billed by KD for “Written Discovery-Plaintiff’s Requests: Separate General Motors, LLC’s Initial Document Production into discrete PDFs.”

2. March 27, 2026 – the Court strikes 0.2 hours (\$120.00) billed by ARR for “Audit Fees/Costs; Audit fee invoice; Add billing categories.”

The Court notes that a number of other entries contained in WL’s billing statements provided include secretarial or clerical tasks such as serving or filing documents. However, the Court also notes that these billing entries are, for the most part, billed at 0.1 hours and include in the description other billable work done, such as “draft, review, and revise proof of service” and “draft, review, and revise email to opposing counsel regarding service.” (See Wirtz Reply Decl., Ex. 9, Entries dated 2/20/25, 2/24/25, 3/5/25, 3/11/25, 4/14/25, 4/23/25, 4/30/25, 8/26/25, 10/15/25 (x2), 12/01/25, 3/31/26, 7/14/26.) Because these entries contain reasonable billable entries for correspondence with GM’s counsel and preparation of proofs of service, the Court declines to strike these entries, and declines to arbitrarily deduct a speculative amount of billable hours spent on filing these documents.

The Court also finds 1.5 hours reasonable for preparation for and attendance of the hearing on this motion.

Accordingly, aside from the entries specifically identified above as being reduced or stricken entirely, the Court finds these billing entries reasonable and necessarily incurred in litigation absent evidence from GM to the contrary.

iii. Lodestar Calculation

Based on the foregoing, the Court calculates the amount of reasonable attorney’s fees Plaintiff is entitled to recover by multiplying the number of reasonably billed hours for work on this case by the reasonable hourly rate of the billing attorneys.

From Plaintiffs' \$25,915.00 attorney's fee request, the Court strikes \$726.50 for clerical entries from NTA, \$170.00 for clerical entries from WL, \$322.50 for preparation of the complaint, \$2,838.00 for preparation of Plaintiffs' discovery requests, and \$193.50 for preparation of the notice of association.

Accordingly, Plaintiff is entitled to recover \$21,664.50 in reasonably incurred attorney's fees.

d. Fee Multiplier

Plaintiff requests a fee multiplier of 1.5 to the lodestar amount given the result obtained, the substantial risks undertaken, and the contingency-based representation. (Motion, p.

Once the Court has determined an appropriate lodestar figure, the court may then determine whether that figure should be adjusted with a positive or negative multiplier. (Graham v. DaimlerChrysler Corp., (2005) 34 Cal.4th 553, 582.) Whether a multiplier or negative multiple is appropriate depends on several factors, including (1) the risks presented by the litigation; (2) the novelty and difficulty of the legal and factual issues involved; (3) the results obtained on behalf of the plaintiff; (4) the skill exhibited by counsel; (5) the extent to which the nature of the litigation precluded other employment by the attorneys; and (6) the contingent nature of the fee award based on the uncertainty of prevailing on the merits and of establishing eligibility for the award. (Consumer Privacy Cases, (2009) 175 Cal.App.4th 545, 556; Robertson, supra, 144 Cal.App.4th at 819.) "The 'results obtained' factor can properly be used to enhance a lodestar calculation where [1] an exceptional effort produced [2] an exceptional benefit." (Graham supra, 34 Cal.4th at 582.)

Plaintiffs argue the fee multiplier is warranted only on the ground that Plaintiffs' counsel assumed risk in taking the case on contingency and as a result, experienced a delay in payment. (Motion, p. 8:5.)

GM opposes, arguing that this case does not warrant a fee multiplier because there was nothing novel, difficult, or unique about the present case or its outcome, as it is a standard Song-Beverly action in which the issues presented are virtually identical case to case, counsel has not avoided or been precluded from taking on new clients to represent Plaintiffs in this action, Plaintiffs' counsel's hourly rates already reflect a contingency-premium that they would not command in non-contingency litigation, and because the Song-Beverly Act reflects the legislative intent not to mandate fee multipliers in all motions for attorney's fees brought by prevailing buyers. (Opp., p. 10:5-7, 10:26-11:4, 11:5-9, 11:23-12:2.)

The Court finds that a multiplier is not warranted in this case. While Plaintiffs received an excellent result in settlement, and while Plaintiffs' counsel took this case on contingency, this is a standard Song-Beverly action. While the Court acknowledges that there is inherent risk in taking a case on contingency, the Court finds the risk in this action to be minimal considering a prevailing buyer in a Song-Beverly action is legally entitled to recovery of all reasonable and necessary attorney's fees, costs, and expenses incurred pursuant to Code of Civil Procedure section 1794, subdivision (d). Based on the relatively sparse record, and the moving and opposition papers filed for the present motion, the Court does not find the novelty or difficulty of the legal and factual issues involved, nor the skill required of Plaintiffs' counsel in this case, rising to the level of warranting a multiplier. Furthermore, there is no evidence presented that this case precluded Plaintiffs' counsel from taking on other employment.

Accordingly, Plaintiffs' request for a fee multiplier is DENIED.

e. Costs and Expenses

Plaintiff requests costs and expenses totaling \$2,371.46 in costs and expenses incurred in this matter, consisting of \$1,369.21 incurred by WL and \$1,002.25 incurred by NTA. (Motion, p. 10:14-15; Wirtz Decl., ¶ 39; Taylor Decl., ¶ 32; NFT Memorandum of Costs; WL Memorandum of Costs.)

"Except as otherwise expressly provided by statute, a prevailing party is entitled as a matter of right to recover costs in any action or proceeding." (Code Civ. Proc., § 1032, subd. (b).) "Allowable costs shall be reasonably necessary to the conduct of the litigation rather than merely convenient or beneficial to its preparation." (Code Civ. Proc., § 1033.5, subd. (c)(2).) "If the items appearing in a cost bill appear to be proper charges, the burden is on the party seeking to tax costs to show that they were not reasonable or necessary." (*Ladas v. California State Auto. Assn.* (1993) 19 Cal. App. 4th 761, 774.) "On the other hand, if the items are properly objected to, they are put in issue and the burden of proof is on the party claiming them as costs." (*Ibid.*)

"A prevailing party who claims costs must serve and file a memorandum of costs within 15 days after the date of service of the notice of entry of judgment or dismissal by the clerk under Code of Civil Procedure section 664.5 or the date of service of written notice of entry of judgment or dismissal, or within 180 days after entry of judgment, whichever is first. The memorandum of costs must be verified by a statement of the party, attorney, or agent that to the best of his or her knowledge the items of cost are correct and were necessarily incurred in the case." (Cal. Rules of Court, rule 3.1700(a)(1).) "Any notice of motion to strike or tax costs must be served and filed 15 days after service of the cost memorandum." (Cal. Rules of Court, rule 3.1700(b)(1).)

In opposition to Plaintiffs' request, GM argues the amount awarded should be reduced by \$1,369.21 as to WL's asserted costs and \$469.40 as to NTA's costs. (Opp., p. 14:17, 15:18.)

Regarding WL's Memorandum of Costs, GM objects to the following costs: (1) \$60 filing and motion fee for filing the motion for attorney's fees as it had not yet been filed, the expense was not reasonably incurred, and is not billable to GM, (2) \$625 for court reporter fees associated with the present motion, as the motion had not yet been filed, the expenses were not reasonably incurred, and are not billable to GM, (3) \$272.40 for electronic filing fees because Plaintiffs have failed to provide supporting documentation or explanation justifying the expense, and (4) \$411.81 for 'other' costs because this category includes insufficiently documented, unnecessary, and unrecoverable expenses, including research and courtesy copies. (Opp. p. 13:18-14:16.)

Regarding NTA's Memorandum of Costs, GM objects to the following costs: (1) \$150 in jury fees because the case never proceeded to trial and thus, fees are unrecoverable, (2) \$100.52 for costs associated with serving process on non-party Diamond because Plaintiffs have not demonstrated that this testimony would have provided unique or indispensable evidence and process service at Diamond was unnecessary, and (3) \$218.88 for electronic filing and service fees because Plaintiffs have failed to provide supporting invoices or itemized breakdowns justifying the expense. (Opp., p. 14:21-15:17.)

Plaintiffs filed their two Memorandums of Costs on October 15, 2025. GM failed to object file or serve a motion to tax or strike the costs within 15 days. However, the Court finds that this failure to notice a motion to strike the costs is not fatal, and will consider GM's objections. Here, the Court is not convinced by GM's arguments.

To start, the Court must permit the prevailing buyer to recover such costs and expenses if reasonably incurred by the buyer in connection with the commencement and prosecution of the action. (Civ. Code, § 1794, subd. (d).) The party filing a memorandum of costs is not required to attach any supporting documents. (*Jones v. Dumrichob* (1998) 63 Cal.App.4th 1258, 1267.) "[A] verified memorandum of costs is prima facie evidence of the propriety of the items listed on it, and the burden is on the party challenging these costs to demonstrate that they were not reasonable or necessary." (*Bender v. County of Los Angeles* (2013) 217 Cal.App.4th 968, 989, internal citations omitted; see also *Benach v. County of Los Angeles* (2007) 149 Cal.App.4th 836, 855; *Nelson v. Anderson* (1999) 72 Cal.App.4th 111, 131-132 ["trial court erred in requiring additional proof from" the party claiming costs when party opposing costs bore the burden of proving the cost unnecessary or unreasonable]; *Santantonio v. Westinghouse Broadcasting Co.* (1994) 25 Cal.App.4th 102, 116, 121 ["where a party shows a prima facie entitlement to costs, the burden is on an objector to prove the costs should be disallowed"].) The burden is on the party opposing the memorandum to either (a) show that the request is facially improper or (b) produce some evidence to show that the request is improper. (*Bender*, supra, 217 Cal.App.4th at 989.)

Here, the burden is on GM to show that the costs included on Plaintiffs' Memorandums of Costs are unreasonable. GM has provided no evidence that any of these fees or costs are unreasonable. Further, while GM objects to certain fees, such as jury fees, on the grounds that they were not ultimately required, this is not a basis on which the Court will deny recovery.

Indeed, posting of jury fees is a requirement for a party not to waive their right to a jury and oftentimes must be done by a certain date in compliance with court orders.

GM is incorrect that further supporting documentation is needed, and GM fails to point to a single entry which is neither allowable nor reasonably necessary. In reviewing Plaintiffs' Memorandums of Costs, none of the costs or expenses for which Plaintiffs seek reimbursement are facially improper.

In the absence of evidence or argument to the contrary, the Court finds that Plaintiffs' request of \$2,044.80 in costs is reasonable and recoverable.

Accordingly, Plaintiffs' request for attorney's fees, costs, and expenses incurred in prosecuting this litigation is GRANTED in the total amount of \$23,709.30, consisting of \$21,664.50 in attorney's fees and \$2,044.80 in costs.

V. Conclusion

Plaintiffs Guillermo Valenzuela and Sandra Valenzuela's Motion for Attorney's Fees is GRANTED in the amount of \$23,709.30.